TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court *will not* entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at https://www.occourts.org/civil-remote-hearings prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your *audio **and** video* are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
August 6, 2026

#	Case Name	Tentative
1.	30-2025-01522484-CU-OE-CJC Kazarian vs. Freight Management, Inc.	Before the Court is a Motion to Compel Further Responses to Request for Production. ROA 29. On May 22, 2026, Plaintiff Karen Kazarian ("Plaintiff") filed the instant Motion to Compel Further Responses to Request for Production against Defendant Freight Management, Inc. ("Defendant"). ROA 29. Plaintiff requests that the Court grant his motion and impose sanctions against Defendant in the amount of $750. ROA 29. Defendant request that the Court deny Plaintiff's motion in its entirety and impose sanctions in the amount of $2,100 against Plaintiff. ROA 54. I. Motion to Compel Further Responses

Requirements

Responses to interrogatories, requests for production, and requests for admission must be signed under oath by the responding party. Cal. Civ. Proc. Code §§ 2030.250(a), 2031.250(a), 2033.240(a). If any response contains an objection, the attorney must also sign the response. Cal. Civ. Proc. Code §§ 2030.250(c), 2033.240(c), 2031.250(c). Accordingly, if a response consists entirely of objections, only the attorney must sign. For hybrid responses (those that contain both an answer and objections), the responding party must verify their portion, and the attorney must sign the objection. *Food 4 Less Supermarkets, Inc. v. Super. Ct*., 40 Cal. App. 4th 651, 657-58 (1995). Unverified responses served within the discovery deadline are not code compliant. *Id.*; see *Melendez v. Super. Ct.*, 215 Cal. App. 4th 1343, 1348 (2013) (stating "an unverified response is tantamount to no response at all."); *see also Laguna Auto Body v. Farmers Ins. Exch*., 231 Cal. App. 3d 481, 489 (1991) (citing the lower court's finding that unverified responses are "legally invalid.")

Importantly, the forty-five (45) day limit for the propounding party to file a motion to compel further responses to interrogatories and requests for admissions, pursuant to California Code of Civil Procedure Sections 2030.300 and 2033.290, respectively, does not begin until the responding party provides verified responses or verification of previously supplied responses. *Golf & Tennis Pro Shop, Inc. v. Super. Ct*., 84 Cal. App. 5th 127, 135 (2022); Cal. Civ. Proc. Code §§ 2030.300(c), 2033.290(c).

The issue before the Court is whether Defendant served valid verified responses on January 21, 2026, such that the 45-day deadline commenced on that date.

Plaintiff advances two arguments in support of its contention that the January 21, 2026, responses did not trigger the deadline. The Court addresses each below.

Plaintiff first contends that Defendant's responses were not code compliant because counsel's signature on the objections was dated January 21, 2025, and the

		accompanying verification was executed on January 19, 2026, two days before service of the responses on January 21, 2026. ROA 58. Plaintiff argues these purported defects prevented the responses from triggering the 45-day deadline. *Id*. The Court disagrees. In this Court's view, the incorrect year appearing on counsel's signature is a clerical error that does not invalidate the objections or the response as a whole. Plaintiff cites no authority holding that an incorrect year on counsel's signature renders a discovery response invalid where the response was otherwise properly served. Plaintiff's argument regarding the verification similarly lacks support. Plaintiff assumes that because the verification was executed on January 19, 2026, and the responses were served on January 21, 2026, the responses necessarily were incomplete when the verification was signed. ROA 58. Plaintiff then concludes that the verification was improperly "pre-executed" and relies on *Drociak v. State Bar* to argue that the allegedly improper verification never triggered the 45-day deadline. *Id*. This conclusion does not follow from the cited authority. *Drociak* involved an attorney disciplinary proceeding arising from counsel's use of blank, pre-signed verifications *without* first consulting with the client to confirm the truth of the discovery responses. *Drociak v. State Bar*, 52 Cal.3d 1085, 1087 (1991). Nothing in *Drociak* holds that a verification must be executed *on the same day* responses are served or that responses become invalid merely because the verification predates service. Plaintiff presents no evidence that the responses were incomplete when verified, that the responses were altered after execution of the verification, or that the verification failed to confirm the truth of the responses. ROA 58. Plaintiff's argument therefore relies on speculation rather than authority.

		Plaintiff next argues that Defendant's March 6, 2026, document production was unverified and therefore did not trigger the forty-five (45) day deadline. ROA 58. This argument confuses a discovery response with the production of documents itself. A response to a request for production is distinct from the subsequent production of documents. See *Pollock v. Super. Ct.,* 93 Cal. App. 5th 1348, 1352 (2023). The response must comply with the verification requirements; the production itself does not require a separate verification. See *Pollock, supra,* 93 Cal. App. 5th at 1358 (holding that "[t]here is no requirement that a document production be verified."). Here, Defendant served verified responses on January 21, 2026. ROA 50. Defendant was not required to separately verify the documents produced on March 6, 2026. Accordingly, the forty-five (45) day deadline began on January 21, 2026. Plaintiff did not file the present Motion to Compel Further Responses until May 22, 2026, approximately *seventy-six (76) days after* the deadline expired. ROA 29. Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production is untimely and **DENIED**. II. Mandatory Sanctions The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or *opposes* a motion to compel response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code § 2031.300(c). The term "substantial justification" means "a justification that 'is clearly reasonable because it is well grounded in both law and fact.'" *In re Marriage of Moore*, 102 Cal. App. 5th 1275, 1287 (2024) (*quoting Doe v. United States Swimming, Inc.*, 200 Cal. App. 4th 1424, 1434, (2011)).

		To avoid sanctions, an unsuccessful opponent to a motion to compel may show "substantial justification" for his or her position—i.e., a rational basis to conclude that the party's failure to fulfill its discovery obligations was justified. *Pollock v. Super. Ct.*, 93 Cal. App. 5th 1348, 1358 (2023) (*citing Foothill Properties v. Lyon/Copley Corona Associates*, 46 Cal. App. 4th 1542, 1557 (1996); *See also* Cal. Civ. Proc. Code § 2030.090(d); *U.S. Swimming, Inc.*, *supra* at 1435. The Court "must make an explicit finding this exception exists," however, "the court *need not* make an explicit finding the exception does not exist . . . . " *Parker v. Wolters Kluwer U.S., Inc.,* 149 Cal. App. 4th 285, 294 (2007) (emphasis added). In light of Plaintiff's lack of substantial justification, sanctions are mandatory. III. Sanctions Amount Three principles govern the award and amount of attorney's fees and costs imposed as a discovery sanction. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc*., 56 Cal. App. 5th 771, 790 (2020) (compulsion, causation, and reasonableness). The most significant one for the Court's analysis here is reasonableness. "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." *Cornerstone, supra*, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction to reach a reasonable award. *Id.* at 791 (citing *Parker supra*, 149 Cal. App. 4th at 294). Having weighed the three aforementioned principles, the Court finds that the sanctions in the amount of $2,100 sought by the responding party are unreasonable. The Court exercises its discretion to reduce the sanctions amount to $1,800.

		Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production (ROA 29) is **DENIED**. Additionally, the court **IMPOSES** sanctions in the amount of $1,800 against Plaintiff Karen Kazarian due and payable to Atkinson, Andelson, Loya, Ruud & Romo within eighty (80) days of receiving notice. Defendant to give notice.
2.	[30-2025-01462253-CU-BT-NJC](#) CA New Generation Insurance Services, Inc. vs. Mufti	Before the Court is a Motion to Compel Compliance, and Sanctions, brought by Plaintiff CA New Generation Insurance Services, Inc. ("Plaintiff") against Defendant Faisal al-Mufti ("Defendant"). ROA 78 The underlying complaint alleges violations of California Penal Code Section 502 [unauthorized access to computers, computer systems and computer data], unfair competition, misappropriation of trade secrets, tortious interference with business contract, and intentional interference with prospective economic advantage. ROA 12. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 128(a)(4), 2030.300, and 2031.310, compelling Defendant to comply with the Court's May 26, 2026, discovery order that ordered Defendant to provide verified, code compliant responses, inclusive of document production and privilege log, to Plaintiff's Requests for Production ("PROD"), Set One, Plaintiff's Form Interrogatories ("FROG"), Set One, Nos. 15.1 and 17.1, within five (5) days of receiving notice of the Court's Order. ROA 78, p.2; ROA 55; ROA 54; ROA 65. Plaintiff also requests that the Court order Defendant to submit all computers, mobile devices, external drives, electronic storage media, email accounts, cloud-storage accounts, Guild Insurance Agency ("GIA") systems, Agency Matrix/ZyWave accounts, and other repositories of electronically stored information reasonably likely to contain responsive information to a neutral third-party forensic examiner within five (5) calendar days of entry of the Court's order, with Defendant

		to bear all forensic examiner costs. ROA 78, p.2. Lastly, Plaintiff requests the Court impose monetary discovery sanctions upon Defendant, pursuant to California Code of Civil Procedure Sections 2030.030(a), 2030.300, 2031.310, and 2031.320, in the amount of $28,246.00, for costs borne by Plaintiff in bringing the instant motion and the original Motions to Compel. ROA 78, p.2. Relevant Timeline of Events On April 24, 2026, Plaintiff served a Motion to Compel Further Responses to Form Interrogatories ("MF-FROG"), Set One, and Sanctions; and a Motion to Compel Further Responses to Requests for Production ("MF-PROD"), Set One, and Sanctions; upon Defendant by email. ROA 53, p. 20; ROA 54, p. 12. On April 28, 2026, the Court ordered the parties to attend an Informal Discovery Conference ("IDC") facilitated by the Court. ROA 58. The Court's order required the parties to file a single joint letter brief ("JLB") summarizing all pending discovery disputes. *Id.* On May 27, 2026, the parties attended the IDC as ordered. ROA 71. Therein, the Court offered the parties its tentative ruling based upon the parties' JLB. *Id.* The parties submitted on the Court's tentative ruling, which resulted in an Order for Defendant to "provide verified responses, inclusive of document production, to all outstanding requests no later than June 10, 2026." *Id.* The Court's order "*expressly* advised" that Defendant's responses must "affirmatively state that all responsive documents have been produced [that are] within [the] party's possession, custody, or control and, if no documents so exist, to so state, and if documents once existed[] but no longer exist, to explain the circumstances as to those documents no longer being in existence . . . ." *Id.* On June 9, 2026, Defendant requested an extension to June 30, 2026, to serve the Court ordered responses. ROA 79, ¶ 11. Due to the then-approaching trial date, Plaintiff refused Defendant's request. *Id.*; *see also* ROA 98 (continuing trial

		from September 28, 2026, to February 16, 2027, as of July 17, 2026). Defendant did not provide the verified, code compliant responses as ordered by the Court. ROA 79, ¶ 12. Powers of the Court to Impose Sanctions California Code of Civil Procedure Section 128 grants courts the power to "compel obedience to its judgments, orders, and process. . . ." Cal. Civ. Proc. Code § 128(a)(4). Additionally, California Code of Civil Procedure Section 177.5 provides that upon "notice contained in a party's moving or responding papers; or on the court's own motion, after notice and opportunity to be heard . . ." a judicial officer may impose monetary sanctions not exceeding fifteen hundred dollars ($1,500) "payable to the court, for any violation of a lawful court order . . . done without good cause or substantial justification." Cal. Civ. Proc. Code § 177.5 (emphasis added); *see People v. Aguirre,* 64 Cal. App. 5th 652, 668 (2021) (citations omitted) (stating Section 177.5 "does not require a 'willful violation, but merely one committed . . . without a valid excuse.'"); *see People v. Edwards,* 88 Cal. App. 5th 1259, 1273 (2023) (finding a court's mere recitation of the words of the statute insufficient to support the imposition of sanctions). Here, the Court finds that Plaintiff's Notice of Motion provides Defendant with sufficient notice of the potential imposition of monetary discovery sanctions for discovery misuse and for failure to adhere to this Court's orders. ROA 78. Additionally, Defendant does not offer, and the Court does not find good cause or substantial justification for Defendant's failure to obey this Court's prior order to serve discovery responses no later than June 10, 2026. ROA 71. Consequently, Defendant is subject to discretionary sanctions pursuant to California Code of Civil Procedure Section 177.5 up to $1,500. Discretionary Sanctions for Misuse of the Discovery Process "California discovery law authorizes a range of penalties

		for conduct amounting to 'misuse of the discovery process,'" including monetary, issue, evidence, and terminating sanctions. *Doppes v. Bentley Motors, Inc*., 174 Cal. App. 4th 967, 991 (2009); Cal. Civ. Proc. Code §§ 2023.030(b)-(d), 2031.300(c). "Misuses of the discovery process include . . . [f]ailing to respond or submit to an authorized method of discovery . . . [m]aking or opposing . . . a motion to compel or to limit discovery . . . " and "disobeying a court order to provide discovery." Cal. Civ. Proc. Code § 2023.010(d), (g), (h). Here, Defendant's failure to obey the Court's order to serve discovery responses by June 10, 2026, also constitutes discovery misuse pursuant to California Code of Civil Procedure Section 2023.010, and justifies the imposition of discretionary discovery sanctions. Determining Appropriate Monetary Discovery Sanctions Awards Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. *See Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.,* 56 Cal. App. 5th 771, 790-91 (2020) (compulsion, causation, and reasonableness). Having addressed compulsion and causation above, the Court focuses here on the principle of reasonableness. "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." *Cornerstone, supra,* 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means that a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction to reach a reasonable award. *Id*., (*citing Parker v. Wolters Kluwer U.S., Inc*., 149 Cal. App. 4th 285, 294 (2007)). "After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions." *In re Marriage of Moore*, 102 Cal.

		App. 5th 1275, 1301 (2024) (emphasis added). Pursuant to California Code of Civil Procedure Section 2023.010, and after considering Plaintiff's counsel's reasonable calculation of expenses incurred as a result of Defendant's multiple discovery abuses, the Court finds that Plaintiff is entitled to a monetary discovery sanctions award of $15,535. Sanctions Reporting Requirements California Business and Professions Code Section 6068 imposes a duty upon licensed attorneys to self-report to the State Bar, in writing, and within thirty (30) days of receiving notice of a court's order imposing "judicial sanctions against the attorney, except for sanctions for failure to make discovery or monetary sanctions of less than one thousand dollars ($1,000)." Cal. Bus. & Prof. Code § 6068(o)(3); *See also* Cal. Bus. & Prof. Code § 6086.7 (placing the same reporting requirements upon the courts). The California State Bar Court reads these exemptions narrowly and has determined that monetary discovery sanctions of $1,000 or more are reportable where the sanction is not for failure to make discovery. *See Matter of Rubin,* 5 Cal. State Bar Ct. Rptr. 797, 808 (2021) (finding that an attorney had an independent duty to report sanctions of $2,335 to the State Bar for unsuccessfully opposing a motion for a protective order). Accordingly, a monetary sanction is *not* exempt from reporting merely because it arises in a discovery proceeding. California Rules of Court, Rule 10.609 states that a "judge issuing the order triggers the notification requirement under California Business and Professions Code Section 6068.7 is responsible for notifying the State Bar . . . and may direct court staff" to do so. Cal. Rules of Court, Rule 10.609(a). Accordingly, the Court determines that any sanctions imposed herein upon Defendant pursuant to California Code of Civil Procedure 2023.010, in any amount of $1,000 or more, are reportable on the grounds they are justified for failure to *follow a court order* to make discovery, rather than

		failure to make discovery. *Compare* Cal. Civ. Proc. Code § 2023(d) *with Id.* at subsec. (g). Allocating Monetary Discovery Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on "one engaging in the misuse of the discovery process, or any attorney advising that conduct . . ." or any party who "unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both." Cal. Civ. Proc. Code § 2023.030(a). Courts *shall* impose monetary sanctions absent a finding "that the one subject to the sanction acted with substantial justification." *Id*. When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court *must find* that the attorney advised the client to engage in the sanctionable conduct. *Cornerstone, supra,* 56 Cal. App. 5th at 799 (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. *Id.*; *compare Corns v. Miller*, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) *with Kwan Software Eng'g, Inc. v. Hennings*, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the *client* engaged in misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for a deposition, sanctions should be imposed on them. *See Ghanooni v. Super Shuttle*, 20 Cal. App. 4th 256, 260-261 (1993) (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and their attorney's declarations show that the attorney attempted to convince the client to comply).

		If the *attorney* is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. *See Ghanooni, supra*, 20 Cal. App. 4th at 260-261. If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. *See Cornerstone, supra*, 56 Cal. App. 5th at 799. Here, the parties do not offer, and the Court does not find, that Defendant's violations of the Court's orders are attributable to client misconduct. Accordingly, sanctions are appropriate against Defendant's counsel only. However, because Plaintiff's Motion does not place Defendant's counsel on notice, the Court finds that the imposition of warranted sanctions at this juncture would violate due process. Finally, the Court exercises its discretion to sanction Defendant's counsel pursuant to California Code of Civil Procedure section 2023.010. The Court declines to impose additional sanctions under section 177.5 because doing so would be duplicative and disproportionate. Accordingly, the Court makes the following orders: Plaintiff's Motion to Compel Compliance is **GRANTED**. Defendant is again **ORDERED** to provide verified, code compliant responses to Plaintiff's discovery demands as detailed in Plaintiff's Motion (ROA 78) by no later than August 13, 2026. Additionally, Defendant's counsel is **ORDERED** to appear to Show Cause re: Monetary Discovery Sanctions of $15,535 for Failure to Obey Court Orders pursuant to Code of Civil Procedure section 2023.010, on August 17, 2026, at 1:30 p.m. in this Department. Clerk shall give notice.

3.	30-2024-01419077-CU-OE-NJC Hernandez vs. Anaheim Palace Inc.	Before the Court is a Motion to Compel Further Responses to Request for Production ("MF-PROD") brought by Plaintiff Laura Romo ("Plaintiff") against Defendant Anaheim Palace ("Defendant"). ROA 90. As a preliminary matter, the Court notes that plaintiff's motion to compel deposition, originally on calendar to be heard before the Court on this day is trailing determination of this motion. Parties are to be prepared to discuss the status of that motion upon conclusion and final determination of the current motion to compel. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.020, 2031.210, 2031.240(b), 2031.310, and 2031.320, compelling Defendant to provide further, verified, code compliant responses to Plaintiff's Request for Production ("PROD"), Set One, Nos. 1-12, and monetary discovery sanctions in the amount of $5,400 upon Defendant and their attorneys of record, Law Office of Yahan Lee, for the costs borne by Plaintiff in bringing their MF-PROD. ROAs 90, 88. Defendant requests that the Court deny Plaintiff's motion in its entirety. ROA 227. I. Code Compliant Responses to Requests for Production Responses to requests for production must take the form of either: (i) an agreement to comply; (ii) a representation of inability to comply; or (iii) objections. Cal. Civ. Proc Code § 2031.210(a). An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Importantly, the items to which the responding party agrees to produce must be of the "demanded

		category" of items requested by the propounding party. *Id.* Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)(b). A statement that the responding party is unable to comply with the demand for production must: affirm that the responding party conducted a diligent search and a reasonable inquiry in an effort to locate the demanded item; and state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that "the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. *Id.* If the responding party either knows or believes that another party has possession, custody, or control of the demanded item, the responding party must state the name and address of said party. *Id.* A responding party who objects to any item or category requested for production, either in whole or in part, must: (i) identify with particularity the specific document or information demanded to which the responding party objects; and (ii) set forth the specific ground for objection. Cal. Civ. Proc. Code § 2031.240(b). If only part of an item or category of a demand is objectionable, the responding party must provide either a statement of compliance or inability to comply as to the remainder. Cal. Civ. Proc. Code § 2031.040(a). "The objection of [undue] burden is valid only when that burden is *demonstrated* to result in injustice. *West Pico Furniture Co. v. Super. Ct.*, 56 Cal. 2d 407, 418 (1961) (emphasis added). To make this showing, a party opposing discovery must make "a factual showing to the trial court of the nature and extent of the trouble and expense which would [] [be] entailed in responding to the request for discovery", and "that the ultimate effect of the burden is incommensurate with the result sought." *Mead Reinsurance Co. v. Super. Ct.*, 188 Cal. App. 3d 313, 321 (1986) (quoting *West Pico, supra*, 56 Cal. 2d at 417). A discovery request may

		be deemed overly broad if it imposes an undue burden, seeks irrelevant information, or constitutes a serious intrusion into protected privacy interests. Cal. Judges Benchbook Civ. Proc. Discovery § 5.5; *Lopez v. Watchtower Bible & Tract Soc'y of New York, Inc*., 246 Cal. App. 4th 566, 578-79 (2016) (rejecting a responding party's overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). "The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." Cal. Civ. Proc. Code § 2017.020. Objections on the grounds that a discovery request is vague or ambiguous are valid "only if the question or request is wholly unintelligible or precludes an intelligent reply." Cal. Judges Benchbook: Civil Proceedings-Discovery § 5.5. Relatedly, however, California Code of Civil Procedure Section 2031.030 requires propounding parties to designate items requested in discovery by either "specifically describing each individual item or by reasonably particularizing each category of item." Cal. Civ. Proc. Code § 2031.030(c)(1). The categories must be "reasonably particularized from the standpoint of the party who is subjected to the burden of producing the materials." *Calcor Space Facility, Inc. v. Super. Ct.* 54 Cal. App. 4th 216, 222 (1997) (finding that it would impose too great a burden on the propounding party to "specifically describe an individual item without first ascertaining its existence."). a. Plaintiff's PROD, Set One, Nos. 1-3 The Court finds that Plaintiff's RFP, Set One, Nos. 1-3 are all facially overbroad on the grounds that they are not reasonably limited in time. ROA 88, pp. 2-4. Accordingly, Defendant's objections on the grounds of undue burden are **SUSTAINED** and Plaintiff is not entitled to further responses. b. Plaintiff's PROD, Set One, Nos. 4, 11 The Court finds that Plaintiff's PROD, Set One, No. 4 is

ambiguous as to the beginning and end of the one year period identified in the demand. ROA 88, p.5. Additionally, the Court finds that Plaintiff's PROD, Set One, No. 11, as written, is vague as to what and how many categories of documents it seeks. ROA 88, p.11. Accordingly, Defendant's objections to Plaintiff's PROD, Set One, Nos. 4 and 11, on the grounds of ambiguity are **SUSTAINED** and Plaintiff is not entitled to a further response.

c. Plaintiff's PROD, Set One, Nos. 5-10, 12

Pursuant to the foregoing, the Court finds that Defendant's objections to Plaintiff's PROD, Set One, Nos. 5-10, and 12 are unsubstantiated and are, therefore, **OVERRULED**. Additionally, the Court finds Defendants responses to the above are not code compliant. Accordingly, Plaintiff is entitled to further, verified, code compliant responses, without objections to Plaintiff's PROD, Set One, Nos. 5-10, and 12.

II. Mandatory Sanctions

California Code of Civil Procedure Section 2031.310(h) provides that the court "shall impose a monetary sanction under Chapter 7 against [anyone] who unsuccessfully makes or opposes a motion to compel further responses to a demand . . . *unless* it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2031.310(h).

To avoid sanctions, an unsuccessful opponent to a motion to compel may show "substantial justification" for his or her position—*i.e.*, a rational basis to conclude that the party's failure to fulfill its discovery obligations was justified. *Pollock v. Super. Ct.*, 93 Cal. App. 5th 1348, 1358 (2023) (*citing Foothill Properties v. Lyon/Copley Corona Associates*, 46 Cal. App. 4th 1542, 1557 (1996); *See also* Cal. Civ. Proc. Code § 2030.090(d); *U.S. Swimming, Inc.*, *supra* at 1435.

The Court "must make an explicit finding this exception exists," however, "the court *need not* make an explicit

		finding the exception does not exist . . . . " *Parker v. Wolters Kluwer U.S., Inc.*, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, Defendant does not offer, and the Court does not find, any substantial justification for Defendant's failure to provide code compliant responses to Plaintiff's PROD, Set One, Nos. 5-10, and 12. Additionally, Plaintiff does not offer, and the Court does not find, any substantial justification for Plaintiff's pursuit of further responses to Plaintiff's PROD, Set One, Nos. 1-4 and 11, over valid objections. Because Defendant does not seek sanctions in opposition to Plaintiff's Motion, imposing sanctions upon Plaintiff would violate due process and therefore result in injustice. No such injustice would result in the imposition of sanctions upon Defendant, as both Defendant and Defendant's counsel have proper notice. However, the Court finds that a reduction in Plaintiff's sanctions is warranted in light of Plaintiff's discovery misuse. III. Proper Allocation of Sanctions Liability California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on "one engaging in the misuse of the discovery process, or any attorney advising that conduct . . ." or any party who "unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both." Cal. Civ. Proc. Code § 2023.030(a). Courts *shall* impose monetary sanctions absent a finding "that the one subject to the sanction acted with substantial justification." *Id*. When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court *must find* that the attorney advised the client to engage in the sanctionable conduct. *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.*, 56 Cal. App. 5th 771, 799 (2020) (emphasis added).

		The burden then shifts to the attorney to prove that they did not provide such advice. *Ghanooni v. Super Shuttle*, 20 Cal. App. 4th 256, 260-261 (1993)); *compare Corns v. Miller*, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) *with Kwan Software Eng'g, Inc. v. Hennings*, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the *client* engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. *See Ghanooni supra*, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the *attorney* is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. *Ghanooni, surpa*, 20 Cal. App. 4th at 260-261. If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. *See Cornerstone supra*, 56 Cal. App. 5th at 799. Here, the Court finds that Defendant's failure to provide code compliant responses to Plaintiff's PROD, Set One, Nos. 5-10 and 12, is not attributable to client misconduct. Accordingly, the imposition of sanctions is appropriate upon Defendant's counsel only. IV. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. *See Cornerstone supra*, 56 Cal. App. 5th at 790-91 (compulsion,

causation, and reasonableness).

"The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." *Cornerstone, supra,* 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. *Id.*, (*citing Parker v. Wolters Kluwer U.S., Inc.*, 149 Cal. App. 4th 285, 294 (2007)).

"After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions." *In re Marriage of Moore*, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added).

Here, having considered the above principles, Plaintiff's declaration of the expenses incurred in bringing this Motion, and Plaintiff's culpability for discovery misuse, the Court finds that Plaintiff is entitled to $3,150 in monetary discovery sanctions.

Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production (ROA 90) is **GRANTED IN PART**. Defendant is ORDERED to provide further, verified, code compliant responses to Plaintiff's Request for Production, Set One, Numbers 5-10 and 12, no later than fourteen (14) days after receipt of notice of this Order. Additionally, the Court **IMPOSES** monetary discovery sanctions upon Defendant's counsel, Law Office of Yahan Lee, in the total collective amount of $3,150, due at payable to Plaintiff's counsel, Law Offices of Timothy J. Donahue, no later than thirty (30) days after receipt of this Order.

Plaintiff to give notice.